

**SUBSTITUTE FOR
HOUSE BILL NO. 5957**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
by amending section 1531 (MCL 380.1531), as amended by 2023 PA 110.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1531. (1) Except as otherwise provided in this act, the
2 superintendent of public instruction shall determine the
3 requirements for and issue all licenses, certificates, and
4 endorsements for teachers, including preprimary teachers and
5 teachers as counselors, in the public schools of this state.

6 (2) Except as otherwise provided in this act, the
7 superintendent of public instruction shall only issue a teaching
8 certificate or additional endorsement to an individual who has
9 passed appropriate available examinations.



1 The superintendent of public instruction may accept passage of
2 an equivalent examination approved by the superintendent of public
3 instruction to meet this requirement for an individual holding a
4 teaching certificate from another state, country, or federally
5 recognized Indian tribe.

6 (3) Except as otherwise provided in this act, the
7 superintendent of public instruction shall only issue a teaching
8 certificate to an individual who has met the elementary or
9 secondary, as applicable, reading credit requirements established
10 under superintendent of public instruction rule. If an individual
11 holds a teaching certificate, notwithstanding any rule to the
12 contrary, the superintendent of public instruction shall not
13 advance the individual's certification to professional
14 certification unless the individual has successfully completed at
15 least a 3-credit course of study with appropriate field experiences
16 in the diagnosis and remediation of reading disabilities and
17 differentiated instruction. To meet this requirement, the course of
18 study should include the following elements, as determined by the
19 department to be appropriate for the individual's certification
20 level and endorsements: interest inventories, English language
21 learning screening, visual and auditory discrimination tools,
22 language expression and processing screening, phonemics, phonics,
23 vocabulary, fluency, comprehension, spelling and writing assessment
24 tools, and instructional strategies. An individual may complete the
25 course of study as part of ~~his or her~~ **the individual's** teacher
26 preparation program.

27 (4) Any revisions to existing reading standards must include
28 the recognition of reading disorders and enable teachers to make
29 referrals for instruction and support for pupils with reading



1 disorders.

2 (5) Subject to subsection (8), if an individual holding a
3 teaching certificate from another state, country, or federally
4 recognized Indian tribe applies to the superintendent of public
5 instruction for a Michigan teaching certificate and meets the
6 requirements of this subsection, the superintendent of public
7 instruction shall issue to the individual a Michigan teaching
8 certificate and endorsements comparable to those the individual
9 holds in the other state or country or with the federally
10 recognized Indian tribe without requiring the individual to pass
11 the appropriate examinations otherwise required under subsection
12 (2) or to complete the reading credit requirement established under
13 superintendent of public instruction rule as described in
14 subsection (3). To be eligible to receive a Michigan teaching
15 certificate under this subsection, an individual shall provide
16 evidence satisfactory to the department that ~~he or she~~ **the**
17 **individual** has taught successfully for at least 3 years in a
18 position for which the individual's teaching certification from the
19 other state, country, or federally recognized Indian tribe was
20 valid.

21 (6) Subject to subsection (8), an individual holding a
22 teaching certificate from another state, country, or federally
23 recognized Indian tribe is eligible for a Michigan professional
24 education certificate if the individual meets both of the
25 following:

26 (a) The individual has taught successfully for at least 3
27 years in a position for which the individual's teaching
28 certification from the other state, country, or federally
29 recognized Indian tribe was valid.



1 (b) The individual meets the elementary or secondary, as
2 applicable, reading credit requirement established under
3 superintendent of public instruction rule as described in
4 subsection (3).

5 (7) Subject to subsection (8), if an individual holding a
6 teaching certificate from another state, country, or federally
7 recognized Indian tribe applies to the superintendent of public
8 instruction for an additional endorsement on a valid Michigan
9 teaching certificate and meets the requirements of this subsection,
10 the superintendent of public instruction shall issue the individual
11 an endorsement comparable to that which the individual holds in the
12 other state or country or with the federally recognized Indian
13 tribe without requiring that the individual pass the appropriate
14 available examinations otherwise required under subsection (2). To
15 be eligible to receive an additional endorsement under this
16 subsection, an individual shall provide evidence satisfactory to
17 the department that ~~he or she~~ **the individual** has taught
18 successfully for at least 3 years in a position for which the
19 individual's teaching endorsement from the other state, country, or
20 federally recognized Indian tribe is valid.

21 (8) The superintendent of public instruction shall deny a
22 Michigan teaching certificate or endorsement to an individual
23 described in subsection (5), (6), or (7) for fraud, material
24 misrepresentation, or concealment in the individual's application
25 for a certificate or for a conviction for which an individual's
26 teaching certificate may be suspended or revoked under section
27 1535a.

28 (9) For the purposes of this section, the superintendent of
29 public instruction, based upon criteria recommended by a committee



1 of teachers, representatives of approved teacher education
2 institutions, Michigan education organizations and associations,
3 and experts in measurement and assessment, shall develop, select,
4 or develop and select 1 or more subject area examinations. In
5 addition, the superintendent of public instruction, based upon
6 criteria recommended by the committee described in this subsection,
7 shall approve a reading subtest to be taken and passed by
8 individuals seeking pre-K to grade 3 or grade 3 to grade 6-level
9 endorsement. If the department develops for use under this
10 subsection an examination that had previously been contracted for
11 using a competitive bid process, then the department shall not
12 expend on the development of that examination an amount that
13 exceeds the amount that the department expended on procurement of
14 the most recent competitively-bid version of that examination. The
15 competitive bid process must address validity, reliability, and
16 other technical standards of the examinations and of the
17 appropriate administration and use of those examinations.

18 (10) Not later than November 30 of each year, the
19 superintendent of public instruction shall submit in writing a
20 report on the development or selection and use of the subject area
21 examinations to the house and senate education committees. The
22 report must also contain a financial statement regarding revenue
23 received from the assessment of fees levied under subsection (12)
24 and the amount of and any purposes for which that revenue was
25 expended.

26 (11) The examinations required by this section may be taken at
27 different times during an approved teacher preparation program, but
28 the examinations, as applicable, must be passed before an
29 individual is recommended for certification.



(12) The department, or if approved by the superintendent of public instruction, a private testing service, may assess fees for taking the appropriate available examinations described in subsection (2). The fees, which must be set by the superintendent of public instruction, must not exceed the actual cost of the examination and of administering the examination. Fees received by the department must be expended solely for administrative expenses that it incurs in implementing this section. If the superintendent of public instruction increases a fee charged for an examination under this subsection, at least 1 year before implementing the fee increase, the department shall notify each approved teacher education institution of the amount of the fee increase. An approved teacher education institution shall notify each of its affected students of the timing and amount of such a fee increase.

(13) If an individual holding a teaching certificate from another state, country, or federally recognized Indian tribe applies for a Michigan teaching certificate and meets all requirements for the Michigan teaching certificate except passage of the appropriate available examinations under subsection (2) or the reading credit requirement under subsection (3), the superintendent of public instruction shall issue a nonrenewable temporary teaching certificate, good for ~~1 year,~~ **3 years**, to the individual. The superintendent of public instruction shall not issue a Michigan teaching certificate to the individual after expiration of the temporary teaching certificate unless the individual has met the requirements of this section.

(14) As used in this section:

(a) "Additional endorsement" means an endorsement added to a Michigan teaching certificate after initial issuance of the



1 certificate.

2 (b) "An individual holding a teaching certificate from another
3 state, country, or federally recognized Indian tribe" means an
4 individual with a valid teaching certificate or an individual who
5 is eligible for a teaching certificate in the state or country or
6 with the federally recognized Indian tribe in which or with which
7 the individual is certificated or eligible for certification.

8 (c) "Subject area examination" means an examination related to
9 an endorsement area for the purpose of demonstrating the
10 applicant's knowledge and understanding of the subject matter and
11 determining whether or not an applicant is eligible for a Michigan
12 teaching certificate or endorsement.

13 (15) The superintendent of public instruction shall promulgate
14 rules for the implementation of this section.

15 (16) ~~Not later than January 1, 2019, the~~ **The** superintendent of
16 public instruction, in consultation with the department of labor
17 and economic opportunity and groups or individuals representing
18 employers, economic development agencies, trade unions, secondary
19 school principals, middle and elementary school principals,
20 teachers, school district and intermediate school district
21 superintendents, and others as determined appropriate by the
22 department, shall promulgate rules to allow an individual to use
23 time spent engaging with local employers or technical centers
24 toward the renewal of a teaching certificate in the same manner as
25 state continuing education or professional development.

26 Enacting section 1. This amendatory act does not take effect
27 unless House Bill No. 5697 of the 103rd Legislature is enacted into
28 law.

